CLIENT SERVICE AGREEMENT

This Client Service Agreement ("Agreement") is entered into as of **05/26/2026** , by and between **Kinetic Digital Publishers** and **Test Payment**, Collectively referred to as "the Parties."

PURPOSE AND SCOPE

> • test

TERM AND PROJECT TIMELINE

The term of this Agreement begins on the Effective Date and shall continue until the completion of the agreed deliverables, unless terminated earlier in accordance with the provisions of this Agreement.

- The standard project duration is **12 Months** unless otherwise agreed.
- Timelines may be adjusted based on client responsiveness and service requirements.
- A detailed milestone-based schedule will be provided within 7 days of the agreement signing.

AGENCY RESPONSIBILITIES

The Agency agrees to:

- Provide services professionally and to the best of its abilities
- Assign qualified professionals to handle editorial, creative, and marketing tasks
- Maintain communication with the Client through designated Account and Project Managers
- Deliver assets in accordance with industry standards and agreed milestones
- Respect confidentiality of all client materials

CLIENT RESPONSIBILITIES

The Client agrees to:

- Provide all requested materials, documents, and information in a timely manner.
- Review drafts, designs, and deliverables and provide feedback within 5 business days.
- The Client agrees to make all payments as scheduled, without delays, in accordance with the agreed-upon payment terms. If the payment is structured in installments, each installment must be paid on or before the due date specified in the payment schedule.
- Communicate changes, concerns, or scope adjustments promptly.

Failure to meet responsibilities may result in project delays, hold status, or termination.

FEES AND PAYMENT TERMS

- The Client agrees to pay **$ 10.88** for the project, including all applicable taxes.
- Project initiation requires an initial payment as discussed and agreed upon in writing. Payment milestones are tied to deliverable phases, and work shall not continue without fulfillment of prior payments. Payments must be made in installments as scheduled, via approved methods. Late payments exceeding 10 business days will result in project suspension and possible termination.

All third-party costs must be prepaid and are non-refundable.

INTELLECTUAL PROPERTY RIGHTS

- The Client shall own all final approved and delivered content, including copyrights, royalties, and intellectual property. All draft materials remain the property of the Agency until the final balance is paid.
- The Agency retains the right to showcase published work (with prior approval) in portfolios and marketing.

CONSUMER PROTECTION AND LEGAL COMPLIANCE

This Agreement operates under protections afforded to service providers and merchants by applicable U.S. law, including, but not limited to:

- UCC §2-615 & §2-718, which allows service-based businesses to establish limited refund conditions when services begin after client agreement.
- FTC Mail, Internet, or Telephone Order Merchandise Rule, which requires merchants to fulfill orders within reasonable timeframes.
- Magnuson-Moss Warranty Act, which allows service-based businesses to limit refunds when terms are disclosed and agreed to before purchase.

PAYMENT DISPUTES AND CHARGEBACKS

In the event the Author initiates a chargeback, payment withdrawal, or unauthorized dispute after service initiation:

- The Agency will pursue compensation through small claims court in the Client's resident state and seek damages for breach of agreement, misrepresentation, or unjust enrichment. The Agency will also seek to recover any fees associated with the dispute, including bank fees, court filing costs, attorney's fees (if applicable), and administrative losses.

CONFIDENTIALITY

Both parties agree to keep all confidential and proprietary information private. This clause survives termination of this Agreement.

LIABILITY LIMITATIONS

The Agency shall not be liable for:

- Delays due to external vendors.

- Losses due to client errors or third-party actions
- Client's failure to comply with platform terms or industry regulations

In no event shall the Agency's liability exceed the total amount paid under this Agreement.

FORCE MAJEURE

The Agency is not liable for failure to perform due to causes beyond reasonable control, including natural disasters, platform disruptions, or global events.

ENTIRE AGREEMENT AND ACCEPTANCE

This document constitutes the full and complete understanding between the Client and the Agency. Any amendments or additions must be made in writing and signed by both parties.

AGENCY	CLIENT
CEO: Miles Wolf	_____
Name: Kinetic Digital Publishers	Name: Test Payment
Date: 05/26/2026	Date: _____